

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 4, 2025
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1. 9:00 AM	MSP07-00579 MATTER OF FREDERICK D REISERT TRUST HEARING IN RE: FIFTH ACCOUNT AND REPORT: PETITON FOR FEES AND COSTS TO ATTORNEY FILED ON 3/7/2025 BY DEBRA DOLCH Dropped
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2. 9:00 AM	MSP16-00086 ESTATE OF STACY FRANKLIN HEARING IN RE: PETITION FOR TERMINATION OF PROCEEDINGS AND DISCHARGE FILED BY JEREMY FRANKLIN ON 07/16/2025
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Need:

1. Appearances

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| 3.
9:00 AM | MSP18-01029 ESTATE OF RYCA ANN SHULTZ
HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION TO ADMINISTRATOR AND ATTY, FINAL DISTRIBUTION FILED ON 3/29/2024 BY LEYLA ZABIH

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration to address any creditor claims that were received before the creditor claim period has run3. Proposed Order
Notes:
<ol style="list-style-type: none">a. Per 11-5-2024 minute order, court ordered objections to be filed by 1-31-2025; otherwise, objections will be deemed waived.b. Objection by Daniel H. Maloney, Court-Appointed Counsel for Maximillian Von Schultz filed 1-29-2025.c. Court will order clerk to notify surety. PrC § 1213(a)(2)d. Reply filed 3-7-2025. |
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**4. P23-01427 MATTER OF: THE ABRAHAM AND GWENDOLYN POLAR FAMILY TRUST, DATED
FEBRUARY 20, 2005 AND FIRST AMENDMENT TO THE ABRAHAM AND
GWENDOLYN POLAR FAMILY TRUST EFFECTIVE SEPTEMBER 1, 2022**

9:00 AM HEARING IN RE: PETITION FOR ORDER FOR DECLARATORY RELIEF FILED ON 2/24/2025 BY JUDI
BRANDLE

Need appearances to report status

Tentative ruling: DENIED WITHOUT PREJUDICE pursuant to Probate Code section
856.5. The court determines that this matter should be determined by a civil action.

Notes:

- a. A copy of the trust is attached to Declaration of Judi Brandle filed 2-24-2025.
- b. Request for Entry of Default as to Electronic Registration Systems, Inc. filed 4-17-2025.
- c. Stipulation to Bifurcate Re: Validity And/Or Enforceability of Deed of Trust filed 4-18-2025.

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5A. **P23-01646** **MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991**
9:00 AM HEARING IN RE: PETITION TO COMPEL FORMAL ACCOUNTINGS FILED ON 06/07/24 BY WILLIAM STEVEN ONO

Need:

1. Appearance by atty. Talia Gallo to show cause why sanctions should not be issued for failure to appear 3-11-2025. The Court will consider sanctions of up to \$1,500.00, pursuant to CCP § 177.5 for failure to appear 3-11-2025.
2. Appearances to report status, including mediation ordered 11-5-2024

Notes:

- a. Response filed by Trustee Susan Husted 10-18-2024.
- b. Petition for Approval of First Account and Report of Trustee filed 08/07/25 by Susan Husted, set 12/30/25
- c. Petition for Approval of Seventh Account and Report of Trustee filed 10/15/25 by Susan Husted, set 03/12/26

5B. **P23-01646** **MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991**
9:00 AM HEARING IN RE: PETITION AND OBJECTION TO ACCOUNTS AND REPORT OF TRUSTEES FILED ON 09/15/23 BY WILLIAM STEVEN ONO

Need appearances to report status, including mediation ordered 11-5-2024

Note: Response to Petition and Objection filed by Susan Husted 01/31/24.

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7. 9:00 AM	P23-01929 ESTATE OF: KIYOSHI ENDOW HEARING IN RE: FIRST AND FINAL REPORT; PETITION FOR APPROVAL; PETITION FOR FINAL DISTRIBUTION; FEES; REIMBURSEMENT FOR FUNERAL EXPENSES FILED ON 07/09/25 BY NOREEN TOYAMA Need: 1. Verified declaration by petitioner to specify plan of distribution, including approximate amount of cash to be distributed to each beneficiary. LR 7.307(a) 2. Revised Proposed Order to include list of assets on hand available for distribution and plan of distribution including approximate amount of cash to be distributed to each heir. LR 7.307(a); 7.101
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8. 9:00 AM	P24-00990 HEARING IN RE: MOTION TO QUASH DEPOSITION SUBPOENA DATED 6-18-25 FOR PRODUCTION OF BUSINESS RECORDS FROM CITIBANK & FOR MONETARY SANCTIONS AGAINST PLAINTIFF STEVEN A SMITH & HIS ATTORNEY FILED ON 7-22-25 BY DONALD IWUCHUKWU Dropped	MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023
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9A. 9:00 AM	P24-01868 ESTATE OF JAROSLAVA PAVLIK HEARING IN RE: AMENDED PETITION FOR PROBATE OF WILL LETTERS TESTAMENTARY W/IAEA FILED ON 3-19-25 BY CHARLES COZART Drop, per Court approved Request for Dismissal filed 08/19/25
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9B. 9:00 AM	P24-01868 ESTATE OF JAROSLAVA PAVLIK HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED BY MILOS LANDSTOFF ON 07/16/2025 Drop, per Court approved Request for Dismissal filed 11/25/25
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11. 9:00 AM	P25-00445 MATTER OF: THE SPINALE FAMILY TRUST, DATED 11/18/05 HEARING ON PETITION IN RE: TO COMPEL TRUSTEE TO ACCOUNT; TO REMOVE TRUSTEE & APPOINT SUCECSSOR TRUSTEE ; RETURN OF TRUST ASSETS & SURCHAGE FILED ON 03/13/25 BY MARY ELLEN SPINALE Need: 1. Appearances Notes: a. Objection filed 09-24-25 by Dominic Spinale
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12.

9:00 AM

P25-00780

ESTATE OF BEVERLY ANN SOPETTI

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON 05/02/25 BY CHERYL ANN KRUEGER

Petitioner, daughter, still must do the following:

1. Appear at the hearing
2. Submit Order for Probate Form DE-140

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13. 9:00 AM	P25-01266 HEARING IN RE: PETITION FOR INSTRUCTIONS TO CONFIRM LIFE ESTATE, COMPEL ACCOUNT AND REPORT, AND REMOVE CO-TRUSTEE FILED ON 07/17/25 BY STEPHEN J. WAMPLER	MATTER OF: WAMPLER 1982 LIVING TRUST, DATED OCTOBER 27, 1982
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Need:

1. Appearances
2. Proposed Order

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14A.
9:00 AM

P22-00733 ESTATE OF RONALD DIGGS
HEARING IN RE: PETITION FOR FINAL DISTRIBUTION DONALD DIGGS ON 09/03/2025

Need:

1. Appearances
2. Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal \$1,715,659.94); accounting begins \$1,677,792.11.
3. Verified declaration by petitioner to specify purpose of “unknown disbursements” of \$499.85

Note: Petition at page 4, line 24 states petitioner is waiving his statutory compensation as an offset of out-of-pocket expenses paid to defend himself against lawsuit filed by two of the heirs of the estate.

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14B. P22-00733 ESTATE OF RONALD DIGGS

9:00 AM

HEARING IN RE: PETITION TO COMPEL DISTRIBUTION; SUSPENSION OF ADMINISTRATOR; REMOVAL;
ACCOUNTING; SURCHARGE; DOUBLE DAMAGES FILED ON 4-18-25 BY KATINA BATES & KENNETH
KNOCKUM

Need:

1. Appearances

Note: Letters of Administration issued to Donald Diggs 12-16-2022.